

25CHCV01106 25CHCV01106

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25CHCV01106 Hearing Date: July 29, 2026 Dept: F43

Dept. F43

Hearing Date: 07-29-26

Case # 25CHCV01106, Alvarado, et
al. v. Toyota Motor Sales USA, Inc.

Trial Date: 06-12-28

MOTION TO COMPEL A

DEPOSITION AND PRODUCTION OF DOCUMENTS

MOVING PARTY: Defendant Toyota Motor Sales USA, Inc.

RESPONDING PARTY: No opposition was filed.

RELIEF REQUESTED

Order compelling plaintiff Luis Antonio

Alvarado to appear for a deposition and to produce requested documents at the deposition and imposing \$1,600 in monetary sanctions against plaintiff Alvarado and his counsel of record.

RULING: Motion is granted in part and denied in part.

SUMMARY OF ACTION

On April 1, 2025, plaintiff Luis Antonio

Alvarado filed this Song-Beverly action against defendant Toyota Motor Sales USA, Inc. (Defendant), concerning defects in a 2020 Toyota Highlander vehicle and asserting breaches of express and implied warranties. The First Amended Complaint named Stephanie Moreno as a co-plaintiff. Defendant filed an answer on April 17, 2026.

On December 3, 2025, Defendant electronically served plaintiff Alvarado with a Notice of Taking his deposition on December 22, 2025, and requesting production of various documents. (Declaration of Sarah Suard ¶ 5, Exh. A.) Plaintiff Alvarado did not object to the notice, appear at the deposition, or provide alternative dates. (Id. ¶ 6.) On January 6, 2026, defense counsel emailed plaintiff's counsel requesting alternative deposition dates within the following three weeks. (Id. ¶ 7, Exh. B at p. 1.) It is unclear whether plaintiff's counsel ever responded to the email. On March 17, 2026, Defendant electronically served plaintiff Alvarado with a second deposition notice for March 31, 2026, and requests for production. (Id., Exh. C.) Plaintiff Alvarado did not object to the deposition notice, appear at the deposition, or provide any alternative dates. (Id. ¶ 9.)

On April 15, 2026, Defendant electronically served plaintiff Alvarado with a third deposition notice for April 28, 2026, and requests for production. (Suard Decl. ¶ 10, Exh. D.) Plaintiff did not object to the third deposition notice. (Id. ¶ 12.) On April 27, 2026, defense counsel emailed the video conference information to plaintiff's counsel. (Id., Exh. E at p. 4.) On the morning of the deposition, defense counsel asked plaintiff's counsel to produce the requested documents before the deposition. (Id., Exh. E at p. 3.) Around 10:01 a.m., defense counsel emailed plaintiff's counsel to confirm plaintiff Alvarado would appear at the deposition. (Id., Exh. E at p. 2.) Defense counsel sent follow-up emails and called plaintiff's counsel, but plaintiff Alvarado never appeared at the deposition and plaintiff's counsel never responded with alternative dates. (Id. ¶ 13, Exh. E at p. 1.)

On June 8, 2026, Defendant filed the instant motion to compel plaintiff Alvarado's deposition and production of documents at

the deposition, and to impose \$1,600 in monetary sanctions against plaintiff Alvarado and his counsel of record. No opposition was filed.

SUMMARY OF ARGUMENTS

Defendant contends plaintiff Alvarado's deposition is necessary in order to evaluate his claims and prepare an adequate defense. Defendant seeks to gather additional information concerning plaintiff's alleged vehicle issues, the frequency with which the issue arose, identification of potential other witnesses, plaintiff Alvarado's interactions with dealership personnel at service visits, whether any of the alleged issues have been resolved, and which of the alleged issues, if any, are currently present in the subject vehicle. According to Defendant, the information is crucial to answer the key questions in a breach of express warranty claim: (1) whether there is or was a warrantable defect that substantially impairs the use, value, or safety of the vehicle, (2) whether the vehicle was presented for repair, and (3) whether the vehicle was repaired within reasonable number of attempts.

MEET AND CONFER

A motion to compel a deposition must include either a meet and confer declaration or, if the deponent fails to attend the deposition and to produce the items described in the deposition notice, "a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance." (Code Civ. Proc., §§ 2025.450, subd. (b), 2016.040.)

In Department F43, meet and confer means in person or via phone. A letter or email does not suffice. (Department F43 Courtroom Information, p. 2.)

The "meet and confer" requirement is met because Defendant presents a declaration and copies of emails showing defense counsel contacted plaintiff Alvarado's counsel about the nonappearances and alternative deposition dates.

ANALYSIS

A. Compelling Party Depositions

“Any party may obtain discovery . . . by taking in California the oral deposition of any person, including any party to the action.” (Code Civ. Proc., § 2025.010.) An oral deposition shall be scheduled for a date at least 10 days after service of the deposition notice.” (Code Civ. Proc., § 2025.270, subd. (a).) A properly served deposition notice is effective to require a party or party-affiliated deponent to attend and to testify, as well as to produce documents for inspection and copying.¿ (Code Civ. Proc., § 2025.280, subd. (a).) If a deponent fails to appear, proceed with, or produce documents for a noticed deposition, the noticing party may move to compel the deponent’s attendance, testimony, and production of documents described in the deposition notice. (Code Civ. Proc., § 2025.450, subd. (a).) The motion must set forth both facts showing good cause justifying the demand for any documents and a “meet and confer” declaration.¿ (Code Civ. Proc., § 2025.450, subds. (b)(1), (b)(2).)¿ “Good cause” exists where the specific facts show the documents or deposition is necessary for the demanding party to prepare for trial and prevent surprise. (Associated Brewers Distributing Co. v. Superior Court (1967) 65 Cal.2d 583, 587.)

After reviewing the moving papers, the supporting declaration, and supporting exhibits, the court finds that Defendant properly noticed plaintiff Luis Antonio Alvarado’s deposition and requested production of documents three times. But plaintiff Alvarado failed to appear at the noticed depositions and never produced the requested documents, and his counsel never served objections and was non-responsive to emails requesting alternative dates. Moreover, Defendant has demonstrated “good cause” for the deposition and the requested production. Plaintiff Alvarado’s deposition and the requested documents are necessary to verify the basis of his claims and to prepare an adequate defense. (Motion at pp. 4:10-12, 5:1-13.)

Plaintiff Alvarado does not oppose Defendant’s motion.

Because Defendant has met its burden, the court grants the motion and orders plaintiff Luis Antonio Alvarado to appear for a deposition and to produce the requested documents (based on the April 15, 2026, deposition notice) within 30 days of the issuing of this order.

B. Sanctions

Defendant asks the court to impose \$1,600 in monetary sanctions against plaintiff Alvarado and his counsel of record. (Suard Decl. ¶ 16.)

The court must impose sanctions against a deponent or “party-affiliated” deponent who fails to appear at a noticed deposition or fails to produce the materials requested in the deposition notice, unless the court finds the one subject to the sanction acted with substantial justification or other circumstances make the imposition of the sanction unjust. (Code Civ. Proc., § 2025.450, subds. (a), (g)(1).)

Defense counsel states she incurred \$1,000 in attorney fees for time spent drafting the instant motion and anticipates incurring \$600 for reviewing and replying to an opposition. (Suard Decl. ¶ 16.) But defense counsel fails to state her hourly rate, her qualifications and experience to support the hourly rate, or the time spent drafting the motion.

Therefore, the court denies Defendant's request for sanctions.

CONCLUSION and ORDER

Defendant Toyota Motor Sales USC, Inc.'s motion to compel plaintiff Luis Antonio Alvarado's deposition and request for production is granted in part. The request for sanctions is denied.

Plaintiff Luis Antonio Alvarado is ordered to appear for a deposition and to produce the requested documents (in the April 15, 2026, deposition notice) within 30 days of the issuing of this order.

Defendant Toyota Motor Sales USC, Inc. to give notice.